

		As to interim harm, it is clear that Plaintiff stands to lose the property and any sums of money and hours already expended into the property. Defendant has not presented any risk of interim harm if the injunction is issued. As such the Preliminary Injunction is GRANTED. As to bond, Defendant's request for a bond of \$2,000,000 is unsupported. Defendant has not articulated any possible damages at all beyond the continually accruing interest. As such, the bond is set at \$200,000, representing approximately six months of interest. Moving party to give notice.
9	Baglien v. Garcia	Defendants County of Orange ("County" individually), Nicholas Doty ("Doty" individually), Steve Hertz ("Hertz" individually), and Adewale Olukoju's ("Olukoju" individually; "Defendants" all together) Motion for Summary Judgment, or Alternatively, Summary Adjudication ("Motion") is GRANTED in its entirety. "(p) For purposes of motions for summary judgment and summary adjudication: . . . (2) A defendant . . . has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto." (Civ. Proc. Code § 437c(p)(2).) "(f)(1) A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (Civ. Proc. Code § 437c(f)(1).) "The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections

have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact." (Civ. Proc. Code § 437c(c).)

Defendants bring their Motion as to the three causes of action ("COA") pled against them (Nos. 13, 14, and 16) and/or seek summary adjudication on several issues.

1) COA No. 13 – Ralph Act - Civ. Code § 51.7

"The elements of a Ralph Act claim for threatened violence under California law are: (1) The defendant intentionally threatened violence against the plaintiff or her property, whether or not [] defendant actually intended to carry out the threat; (2) A substantial motivating reason for the defendant's conduct was her perception of the plaintiff's protected characteristic as defined by the statute . . . ; (3) A reasonable person in plaintiff's position would have believed that defendant would carry out the threat; (4) A reasonable person in plaintiff's position would have been intimidated by defendant's conduct; (5) Plaintiff was harmed; and (6) Defendant's conduct was a substantial factor in causing the plaintiff's harm." (*Black Lives Matter-Stockton Chapter v. San Joaquin Cty. Sheriff's Off.*, 398 F. Supp. 3d 660, 678–79 (E.D. Cal. 2019).) One of the protected characteristics as defined by the statute is "position in a labor dispute." (Civ. Code § 51.7(b)(1).)

"(a) A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative.

(b) Except as otherwise provided by statute, a public entity is not liable for an injury resulting from an act or omission of an employee of the public entity where the employee is immune from liability." (Gov't Code § 815.2.)

"Except as otherwise provided by statute, a public employee is not liable for an injury resulting from his act or omission where the act or omission was the *result of the exercise of the discretion vested in him, whether or not such discretion be abused.*" [Emphasis added.] (Gov't Code § 820.2.) "Sheriffs are among the public employees subject to immunity under section 820.2." (*Steinle v. City & Cnty. of San Francisco*, 230 F. Supp. 3d 994, 1020 (N.D. Cal. 2017), *aff'd*, 919 F.3d 1154 (9th Cir. 2019).)

Defendants contend this COA is barred as the officers are immune under Gov't Code § 820.2 as their acts regarding Plaintiff were discretionary and not ministerial, and that Plaintiff cannot show any violence was committed against her as required under this COA.

"Whether or not a public employee is immune from liability under section 820.2 depends in many cases upon whether the act in